My Response:

Introduction

As Painted Images (PI) grows, it is now well established in its regional operations area but wants to create new marketing materials. PI intends to adopt a new slogan, "Painting with Class," as its trademark. However, a smaller competitor in the state has adopted "Paints with Class" as its slogan. This analysis will examine whether PI's proposed slogan, "Painting with Class," infringes upon the competitor's trademark, "Paints with Class," and the potential legal implications.

Part 1: Trademark Infringement

For PI's case, the Lanham Act is a federal law that protects trademarks, which are symbols, words, or phrases identifying a specific source of goods or services (UpCounsel, 2024). It helps prevent confusion among consumers by protecting against the unauthorized use of similar logos, designs, or slogans. The Lanham Act also covers trademarks and service marks, protecting against false advertising and misusing another entity's mark. To determine infringement, the court considers the similarity of the marks, the goods or services offered, and the potential for consumer confusion. This analysis will examine whether PI's proposed slogan, "Painting with Class," infringes upon the competitor's trademark, "Paints with Class," and the potential legal implications. The principle of trademark infringement includes factors such as the distinctiveness of the mark, similarity in appearance, sound, and meaning, and any actual confusion among consumers. The doctrine of equivalents, although primarily applied to patents, can offer some parallels in understanding how minor changes might still constitute infringement if the overall impression remains confusingly similar.

According to *Advanced Business Law and the Legal Environment* (2014, Chapter 23), UpCounsel (2024), UMGC (n.d.), and U.S. Patent and Trademark Office (2023), a trademark is the right to prevent others from using a company's product name, slogan, or identifying design. While the two slogans are similar in wording, they are not identical. Additionally, the sound of the two slogans is similar, but not the same. Moreover, since both PI and the competitor are in the paint business, they offer similar products and services. Furthermore, because of the similarities, it is confusing for consumers. This is the key factor in determining trademark infringement. The court will consider whether consumers are likely to be confused about the source of the goods or services. Some infringement qualifications are based on the distinctive or similarity of the marks in

appearance, sound, and meaning. Additionally, the examination will include the similarities of the goods or services offered by the two companies and any confusion among consumers. Based on the evidence provided, it is likely that since the slogans are very similar, there is confusion for the consumers which infringes on the trademark (*Advanced Business Law and the Legal Environment,* 2014, Chapter 23; UpCounsel, 2024; UMGC, n.d.; U.S. Patent and Trademark Office, 2023).

For instance, according to the U.S. Customs and Border Protection (2023), counterfeit Apple Watches sold on platforms like eBay often mimic the genuine product's design and branding. While these counterfeit watches may not be identical, their similarity to the authentic product can confuse consumers. This deception can harm Apple's brand reputation and lead to financial loss unless eBay or the person law suing has sufficient evidence that the company is selling counterfeit goods (U.S. Customs and Border Protection, 2023). Similarly, PI's proposed slogan, "Painting with Class," is like the competitor's slogan, "Paints with Class." While not identical, the similar sound, meaning, and target market would confuse consumers and dilute the uniqueness of the competitor's brand. This relates to PI's case because if PI's trademark is similar and confusing to another trademark and the goods and services are related, consumers are likely to mistakenly believe these goods or services come from the same source. This confusion is the most common reason for refusing registration of the company's trademark (U.S. Patent and Trademark Office, 2023).

In PI's case, if PI breaches the laws, proving infringement can be a difficult task for others to detect as many companies employ engineers to "design around" a patent product. According to *Advanced Business Law and the Legal Environment* (2014, Chapter 23), UpCounsel (2024), UMGC (n.d.), and U.S. Patent and Trademark Office (2023) infringing products, processes, or machines need not be identical; as the Supreme Court said in Sanitary Refrigerator Co. v. Winers, [8] "one device is an infringement of another…if two devices do the same work in substantially the same way, and accomplish substantially the same result…even though they differ in name, form, or shape." This is known as the doctrine of equivalents. In an infringement suit, the court must choose between these two extremes: legitimate "design around" and infringement through some equivalent product. An infringement suit can often be dangerous because the defendant will almost always assert in its answer that the patent is invalid. The plaintiff's patent holder thus runs the risk that the plaintiff's entire patent will be taken away from the plaintiff if the court agrees. In ruling on validity, the court may consider all the tests, such as prior

art and obviousness. To mitigate these infringements, PI should do a Trademark search by conducting a thorough trademark search to identify any potential conflicts with existing trademarks, consider Alternative Slogans that are more distinctive and less likely to confuse and Monitor the Competitor's Activities to identify any potential infringement or dilution of the competitor's trademark. In other words, PI must conduct a comprehensive clearance search and understand how to assess the results before applying to lessen the confusion of the trademark. The assigned USPTO examining attorney will search the federal database for conflicting trademarks (registered or pending) when they examine Painted Images' (PI) application. During the examination, the attorney will issue a refusal to register your trademark if they determine there is a likelihood of confusion between your trademark for the specified goods or services and a registered trademark for related goods or services. In other words, if there is a likelihood of confusion between your trademark and one in a pending application for related goods and services with a filing date earlier than yours, the examining attorney will advise PI that registration may be refused if that trademark registers (*Advanced Business Law and the Legal Environment,* 2014, Chapter 23; UpCounsel, 2024; UMGC, n.d.; U.S. Patent and Trademark Office, 2023). By taking these steps, PI can protect its brand and avoid potential legal issues.

Conclusion

In conclusion, given the similarity of the marks, goods, and potential for consumer confusion, PI's proposed slogan could infringe on the competitor's trademark. However, a detailed analysis of specific circumstances, including the strength of the competitor's mark and any confusion, will ultimately determine the outcome. PI must apply for a comprehensive USPTO attorney to examine the impact of similar trademark slogans. If the Attorney deems that it is too similar, the test may fail for PI, else the test may pass for PI. For instance, if PI's trademark slogan passes, it will also affect the two similar companies with the rise of counterfeit goods. Counterfeit losses are significant because even if PI passes the trademark, PI will have to deal with financial losses of the counterfeits that the consumers are confused about with PI's company. To mitigate these issues, it is best that PI consult with the UPTO attorney, examine it, and create a unique trademark to prevent chances of counterfeit losses. Therefore, the analysis demonstrates that it is likely that PI will cause confusion among consumers, and it is best to consult with the USPTO attorney to check within the databases and also prevent counterfeit losses for PI.

Thank you.

-Victoria Lee

References

References

Advanced Business Law and the Legal Environment: Chapter 23. (2014). Washington, D.C.: The Saylor Foundation. https://leocontent.umgc.edu/content/dam/equella-content/lgst340/Chapter%2023%20-%20Intellectual%20Property.pdf?ou=1254835

UMGC. (n.d.). *BMGT 381 Week 5 from the instructor's perspective*. University of Maryland Global Campus. https://learn.umgc.edu/d2l/le/lessons/1254835/lessons/33283011

UpCounsel. (2024). *Lanham Act: Everything you need to know*. UpCounsel. https://www.upcounsel.com/lanham-act

U.S. Customs and Border Protection. (2023). *Fake Apple watches, and wireless headphones worth nearly $400K seized by CBP*. CBP (U.S. Customs and Border Protection). https://www.cbp.gov/newsroom/local-media-release/fake-apple-watches-wireless-headphones-worth-nearly-400k-seized-cbp

U.S. Patent and Trademark Office. (2023). *What is a Trademark*? USPTO. https://www.uspto.gov/trademarks/basics/what-trademark

U.S. Patent and Trademark Office. (2023). *Trademark, patent, and copyright*. USPTO. https://www.uspto.gov/trademarks/basics/trademark-patent-copyright

U.S. Patent and Trademark Office. (2023). *Trademark: Likelihood of Confusion*. USPTO. https://www.uspto.gov/trademarks/search/likelihood-confusion

U.S. Patent and Trademark Office. (2023). *Trademark Scope Protection*. USPTO. https://www.uspto.gov/trademarks/basics/scope-protection